

CHAPTER 3

CANON I – INDEPENDENCE

The independence of a lawyer in the discharge of professional duties without any improper influence, restriction, pressure, or interference, direct or indirect, ensures effective legal representation and is ultimately imperative for the rule of law.

Section 1. Independent, accessible, efficient and effective legal service. — A lawyer shall make legal services accessible in an efficient and effective manner. In performing this duty, the lawyer shall maintain independence, act with integrity, and at all times ensure the efficient and effective delivery of justice.

A lawyer shall not reject, except for valid reasons, the cause of the defenseless or the oppressed, and in such cases, even if he does not accept a case, shall not refuse to render legal advice to the person concerned if only to the extent necessary to safeguard the latter's right.⁷⁴

Access to justice by all, especially by the poor, is not simply an ideal in our society. Its existence is essential in a democracy and in the rule of law. As such, it is guaranteed by no less than the fundamental law:

Sec. 11. Free access to the courts and quasi-judicial bodies and adequate legal assistance shall not be denied to any person by reason of poverty.

⁷⁴Rodica v. Atty. Lazaro, et. al., A.C. No. 9259, August 23, 2012

The Court recognizes the right of access to justice as the most important pillar of legal empowerment of the marginalized sectors of our society. Among others, it has exercised its power to "promulgate rules concerning the protection and enforcement of constitutional rights" to open the doors of justice to the underprivileged and to allow them to step inside the courts to be heard of their complaints. In particular, indigent litigants are permitted under Section 21, Rule 3 and Section 19, Rule 141 of the Rules of Court to bring suits in forma pauperis.

The IBP, pursuant to its general objectives to "improve the administration of justice and enable the Bar to discharge its public responsibility more effectively," assists the Court in providing the poor access to justice. In particular, it renders free legal aid under the supervision of the NCLA.⁷⁵

Legal Aid is Not a Matter of Charity

This is based on the principle that legal aid is not a matter of charity. It is a means for the correction of social imbalances that may and often do lead to injustice, for which reason it is a public responsibility of the bar. The spirit of public service should, therefore, underlie all legal aid offices. The same should be so administered as to give maximum possible assistance to indigent and deserving members of the community in all cases, matters and situations in which legal aid may be necessary to forestall an injustice.⁷⁶

⁷⁵*Re: Request of National Committee on Legal Aid to Exempt Legal Aid Clients from Paying Filing, Docket and Other Fees, A.M. No. 08-11-7-SC, August 28, 2009)*

⁷⁶Section 1, Article I, Guidelines on Legal Aid

A Lawyer May Refuse to Handle a Case Based on Conflict of Interest

There is conflict of interest when a lawyer represents inconsistent interests of two or more opposing parties. The test is "whether or not in behalf of one client, it is the lawyer's duty to fight for an issue or claim, but it is his duty to oppose it for the other client. In brief, if he argues for one client, this argument will be opposed by him when he argues for the other client." This rule covers not only cases in which confidential communications have been confided, but also those in which no confidence has been bestowed or will be used. Also, there is conflict of interests if the acceptance of the new retainer will require the attorney to perform an act which will injuriously affect his first client in any matter in which he represents him and also whether he will be called upon in his new relation to use against his first client any knowledge acquired through their connection. Another test of the inconsistency of interests is whether the acceptance of a new relation will prevent an attorney from the full discharge of his duty of undivided fidelity and loyalty to his client or invite suspicion of unfaithfulness or double dealing in the performance thereof.⁷⁷

The rule prohibiting conflict of interest was fashioned to prevent situations wherein a lawyer would be representing a client whose interest is directly adverse to any of his present or former clients. In the same way, a lawyer may only be allowed to represent a client involving the same or a substantially related matter that is materially adverse to the former client

⁷⁷*Pacana v. Atty. Pascual-Lopez, A.C. No. 8243, July 24, 2009*

only if the former client consents to it after consultation. The rule is grounded in the fiduciary obligation of loyalty. Throughout the course of a lawyer-client relationship, the lawyer learns all the facts connected with the client's case, including the weak and strong points of the case. Knowledge and information gathered in the course of the relationship must be treated as sacred and guarded with care. It behooves lawyers, not only to keep inviolate the client's confidence, but also to avoid the appearance of treachery and double-dealing for only then can litigants be encouraged to entrust their secrets to their lawyers, which is of paramount importance in the administration of justice. The nature of that relationship is, therefore, one of trust and confidence of the highest degree.⁷⁸

2006 Bar Exam Question No. I(1)

Why is law a profession and not a trade?

The Practice of Law is Not a Business

The practice of law is not a business. It is a profession in which duty to public service, not money, is the primary consideration. Lawyering is not primarily meant to be a money-making venture, and law advocacy is not a capital that necessarily yields profits. The gaining of a livelihood should be a secondary consideration. The duty to public service and to the administration of justice should be the primary consideration of lawyers, who must subordinate their personal interests or what they owe to themselves.⁷⁹

⁷⁸*Tan v. Atty. Alvarico*, A.C. No. 10933, November 03, 2020

⁷⁹*Bengco v. Atty. Bernardo*, A.C. No. 6368, June 13, 2012

Lawyering is Not Moneymaking

Lawyering is not a moneymaking venture and lawyers are not merchants. Law advocacy is not capital that yields profits. The returns it births are simple rewards for a job done or service rendered. It is a calling that, unlike mercantile pursuits which enjoy a greater deal of freedom from governmental interference, is impressed with a public interest, for which it is subject to state regulation.⁸⁰

In this day and age, members of the bar often forget that the practice of law is a profession and not a business. Lawyering is not primarily meant to be a money-making venture, and law advocacy is not a capital that necessarily yields profits. The gaining of a livelihood is not a professional but a secondary consideration. Duty to public service and to the administration of justice should be the primary consideration of lawyers, who must subordinate their personal interests or what they owe to themselves. The practice of law is a noble calling in which emolument is a byproduct, and the highest eminence may be attained without making much money.⁸¹

Legal Profession vs. Business

It has been repeatedly stressed that the practice of law is not a business. It is a profession in which duty to public service, not money, is the primary consideration. Lawyering is not primarily meant to be a money-making venture, and law advocacy is not a

⁸⁰*Sesbreño v. Court of Appeals*, G.R. No. 161390, April 16, 2008

⁸¹*Burbe v. Atty. Magulta*, AC No. 99-634, June 10, 2002

capital that necessarily yields profits. The gaining of a livelihood should be a secondary consideration. The duty to public service and to the administration of justice should be the primary consideration of lawyers, who must subordinate their personal interests or what they owe to themselves. The following elements distinguish the legal profession from a business:

1. A duty of public service, of which the emolument is a by-product, and in which one may attain the highest eminence without making much money;
2. A relation as an "officer of the court" to the administration of justice involving thorough sincerity, integrity and reliability;
3. A relation to clients in the highest degree of fiduciary;
4. A relation to colleagues at the bar characterized by candor, fairness, and unwillingness to resort to current business methods of advertising and encroachment on their practice, or dealing directly with their clients.⁸²

Lawyers Must Avoid Predatory Pricing

A lawyer shall not charge rates lower than those customarily prescribed unless the circumstances so warrant. This is to avoid the so-called predatory pricing. This is one of the practices that degrade the dignity of the legal profession.

⁸²*Atty. Khan v. Atty. Simbillo, A.C. No. 5299, August 19, 2003*

Predatory pricing which means selling or offering to sell any product at a price unreasonably below the industry average cost so as to attract customers to the detriment of competitors.⁸³

Section 2. Merit-based practice. — A lawyer shall rely solely on the merits of a cause and not exert, or give the appearance of, any influence on, nor undermine the authority of the court, tribunal or other government agency, or its proceedings.

Section 3. Freedom from improper considerations and external influences. — A lawyer shall not, in advocating a client's cause, be influenced by dishonest or immoral considerations, external influences, or pressure.

Section 4. Non-interference by a lawyer. — Unless authorized by law or a court, a lawyer shall not assist or cause a branch, agency, office or officer of the government to interfere in any matter before any court, tribunal, or other government agency.

Section 5. Lawyer's duty and discretion in procedure and strategy. — A lawyer shall not allow the client to dictate or determine the procedure and strategy in handling the case.

Nevertheless, the lawyer shall respect the client's decision to settle or compromise the case after explaining its consequences to the client.

⁸³Tatad v. Secretary of the Department of Finance, G.R. No. 124360, November 5, 1997

The Duty of a Lawyer is the Administration of Justice

Every member of the Bar must bear in mind that: "The primary duty of lawyers is not to their clients but to the administration of justice. To that end, their clients' success is wholly subordinate. The conduct of a member of the bar ought to and must always be scrupulously observant of the law and ethics. Any means, not honorable, fair and honest which is resorted to by the lawyer, even in the pursuit of his devotion to his client's cause, is condemnable and unethical."

Zeal and persistence in advancing a client's cause must always be within the bounds of the law. A self-respecting independence in the exercise of the profession is expected if an attorney is to remain a member of the bar. In the present case, we find that respondent fell short of these exacting standards. Given the import of the case, a warning is a mere slap on the wrist that would not serve as commensurate penalty for the offense.⁸⁴

First, a lawyer is not allowed to divide his personality as an attorney at one time and a mere citizen at another. Regardless of whether a lawyer is representing his client in court, acting as a supposed spokesperson outside of it, or is merely practicing his right to press freedom as a "journalist-blogger," his duties to the society and his ethical obligations as a member of the bar remain *unchanged*. Though it is true that Atty. Causing is, by all means, given the liberty to defend his client's cause with utmost zeal, this is not without reasonable limitations. In this case, it appears that

⁸⁴*Jimenez v. Atty. Verano, Adm. Case No. 8108, July 15, 2014*

Atty. Causing's post in Facebook was so designed to elicit, at the very least, a negative public opinion against complainant. And second, it is settled that the freedom of speech, of expression, and of the press, like all constitutional freedoms, are *not* absolute.⁸⁵

The Relationship Between a Lawyer and a Judge

Marked attention and unusual hospitality on the part of a lawyer to a judge, uncalled for by the personal relations of the parties, subject both the judge and the lawyer to misconstructions of motive and should be avoided. A lawyer should not communicate or argue privately with the judge as to the merits of a pending cause and deserves rebuke and denunciation for any device or attempt to gain from a judge special personal consideration or favor. A self-respecting independence in the discharge of professional duty, without denial or diminution of the courtesy and respect due the judge's station, is the only proper foundation for cordial personal and official relations between bench and bar.⁸⁶

A Lawyer Must Not Influence a Judge

The highly immoral implication of a lawyer approaching a judge — or a judge evincing a willingness — to discuss, in private, a matter related to a case pending in that judge's sala cannot be over-emphasized. A lawyer is duty-bound to actively avoid any act that tends to influence, or may be seen to influence, the outcome of an ongoing case, lest the people's faith

⁸⁵*Velasco v. Atty. Causing*, A.C. No. 12883 (Formerly CBD Case No. 16-5016), March 02, 2021

⁸⁶*Lantoria v. Atty. Bunyi*, A.C. No. 1769, June 8, 1992

in the judicial process is diluted. The primary duty of lawyers is not to their clients but to the administration of justice. To that end, their clients' success is wholly subordinate. The conduct of a member of the bar ought to and must always be scrupulously observant of the law and ethics. Any means, not honorable, fair and honest which is resorted to by the lawyer, even in the pursuit of his devotion to his client's cause, is condemnable and unethical.

A lawyer that approaches a judge to try to gain influence and receive a favorable outcome for his or her client violates Canon 13 of the Code. Canon 13 and Canon 13.01 state: Rule 13.01 – A lawyer shall not extend extraordinary attention or hospitality to, nor seek opportunity for cultivating familiarity with Judges.⁸⁷

Lawyers Have the Right to Criticize in Good Faith

At this point, this Court leaves an essential reminder to members of the Bar and the Bench alike: all lawyers should take heed that they are licensed officers of the courts who are mandated to maintain the dignity of the legal profession and the integrity of the judicial institution to which they owe fidelity according to the oath they have taken, hence, they must conduct themselves honorably and fairly in all circumstances. It is one thing to show courage and another to display arrogance; it is one thing to demonstrate passion and another to exude heedless overzealousness. To be clear, this Court is not undermining the right of lawyers, as

⁸⁷*Judge Dumlao v. Atty. Camacho, A.C. No. 10498, September 04, 2018*

officers of the court and as citizens, to criticize the acts of courts and judges, as well as discuss issues of transcendental importance. However, they should be circumspect of their actions and statements, thus such criticisms and discussions should only be done in a proper and legally-accepted manner. The use of unnecessary language and means is proscribed if we are to promote high esteem in the courts and trust in judicial administration.

All told, as shown by the above circumstances, respondent's reckless behavior of imputing ill motives and malice to the Court's process is plainly evident in the present case. Her public statements covered by different media organizations incontrovertibly brings the Court in a position of disrepute and disrespect, a patent transgression of the very ethics that members of the Bar are sworn to uphold. This, the Court cannot countenance.⁸⁸

Criticism or comment made in good faith on the correctness or wrongness, soundness or unsoundness, of a decision of the Court would be welcome for, if well-founded, such reaction can enlighten the court and contribute to the correction of an error if committed. The ruling in *Estrada v. Arroyo*, being a final judgment, has long put to end any question pertaining to the legality of the ascension of Arroyo into the presidency. By reviving the issue on the validity of the assumption of Mme. Gloria Macapagal-Arroyo to the presidency, Attorney Pagua is vainly seeking to breathe life into the carcass of a long dead issue.

⁸⁸Re: Show Cause Order In The Decision Dated May 11, 2018 In G.R. No. 237428 (*Republic of The Philippines, Represented by Solicitor General Jose C. Calida v. Maria Lourdes P.A. Sereno*), A.M. No. 18-06-01- SC, July 17, 2018

Attorney Paguia has not limited his discussions to the merits of his client's case within the judicial forum; indeed, he has repeated his assault on the Court in both broadcast and print media. Rule 13.02 of the Code of Professional Responsibility prohibits a member of the bar from making such public statements on any pending case tending to arouse public opinion for or against a party. By his acts, Attorney Paguia may have stoked the fires of public dissension and posed a potentially dangerous threat to the administration of justice.

It is not the first time that Attorney Paguia has exhibited similar conduct towards the Supreme Court. In a letter, dated 30 June 2003, addressed to Chief Justice Hilario G. Davide, Jr., and Associate Justice Artemio V. Panganiban, he has demanded, in a clearly disguised form of forum shopping, for several advisory opinions on matters pending before the Sandiganbayan. In a resolution, dated 08 July 2003, this Court has strongly warned Attorney Alan Paguia, on pain of disciplinary sanction, to desist from further making, directly or indirectly, similar submissions to this Court or to its Members. But, unmindful of the well-meant admonition to him by the Court, Attorney Paguia appears to persist on end.

Unrelentingly, Atty. Paguia has continued to make public statements of like nature. The Court has already warned Atty. Paguia, on pain of disciplinary sanction, to become mindful of his grave responsibilities as a lawyer and as an officer of the Court. Apparently, he has chosen not to at all take heed.

WHEREFORE, Attorney Alan Pagua is hereby indefinitely suspended from the practice of law, effective upon his receipt hereof, for conduct unbecoming a lawyer and an officer of the Court.⁸⁹

Lawyers Must Not Use the Media to Influence Public Opinion

The power of the media to form or influence public opinion cannot be underestimated. In *Dalisay v. Mauricio, Jr.*, the therein complainant engaged therein-respondent's services as "she was impressed by the pro-poor and pro-justice advocacy of respondent, a media personality," only to later find out that after he demanded and the therein complainant paid an exorbitant fee, no action was taken nor any pleadings prepared by him. Respondent was suspended for six months.

On reading the articles respondent published, not to mention listening to him over the radio and watching him on television, it cannot be gainsaid that the same could, to a certain extent, have affected the sales of complainant. Back to *Dalisay*, this Court, in denying therein-respondent's motion for reconsideration, took note of the fact that respondent was motivated by vindictiveness when he filed falsification charges against the therein complainant.

WHEREFORE, Atty. Melanio Mauricio is, for violation of the lawyer's oath and breach of ethics of the legal profession as embodied in the Code of Professional Responsibility, **SUSPENDED** from the practice of law

⁸⁹*Estrada v. Sandiganbayan, G.R. No. 159486-88, November 25, 2003*

for three years effective upon his receipt of this Decision. He is warned that a repetition of the same or similar acts will be dealt with more severely.⁹⁰

The Supreme Court has been consistent in its rulings that Rule 1.01 of the Code of Professional Responsibility states that "a lawyer shall not engage in unlawful, dishonest, immoral or deceitful conduct." As such, membership in the legal profession is a privilege that is bestowed upon individuals who are not only learned in law, but are also known to possess good moral character. Lawyers must conduct themselves beyond reproach at all times, whether they are dealing with their clients or the public at large, and a violation of the high moral standards of the legal profession justifies the imposition of the appropriate penalty, including suspension and disbarment. Thus, while the Court has emphasized that the power to disbar is always exercised with great caution and only for the most imperative reasons or cases of clear misconduct affecting the standing and moral character of the lawyer as an officer of the court and member of the Bar, it has, likewise, underscored the fact that any transgression, whether professional or non-professional, indicating unfitness for the profession justifies disciplinary action, as in the case of the respondent.⁹¹

As such a lawyer who forges a court decision and represents it as that of a court of law is guilty of the gravest misconduct and deserves the supreme penalty of disbarment.⁹²

⁹⁰*Foodsphere, Inc. v. Atty. Melanio L. Mauricio, Jr.*, A.C. No. 7199, July 22, 2009

⁹¹*Manalang v. Atty. Buendia*, A.C. No. 12079, November 10, 2020

⁹²*Atty. Embido v. Atty. Pe*, A.C. No. 6732, October 22, 2013

A lawyer shall at all times uphold the integrity and dignity of the legal profession. The bar should maintain a high standard of legal proficiency as well as honesty and fair dealing. A lawyer brings honor to the legal profession by faithfully performing his duties to society, to the bar, to the courts and to his clients. To this end a member of the legal fraternity should refrain from doing any act which might lessen in any degree the confidence and trust reposed by the public in the fidelity, honesty and integrity of the legal profession.⁹³

Indeed, the success of a lawyer in his profession depends almost entirely on his reputation. Anything which will harm his good name is to be deplored as a lawyer's reputation is "a plant of tender growth, and its bloom, once lost, is not easily restored."⁹⁴

Atty. Buffe's admitted appearance, before the very same branch she served and immediately after her resignation, is a violation that we cannot close our eyes to and that she cannot run away from under the cover of the letter-query she filed and her petition for declaratory relief, whose dismissal she manifested she would pursue up to our level. We note that at the time she filed her letter-query (on March 4, 2008), Atty. Buffe had already appeared before Branch 81 in at least three (3) cases. The terms of Section 7 (b)(2) of R.A. No. 6713 did not deter her in any way and her misgivings about the fairness of the law cannot excuse any resulting violation she committed. In other words, she took the risk of appearing before her own Branch and should suffer the consequences of the risk she took.

⁹³*Flores v. Atty. Chua, Adm. Case. No. 4500, April 30, 1998*

⁹⁴*Saludo v. Court of Appeals, G.R. No. 121404, May 3, 2006*

Nor can she hide behind the two declaratory relief petitions she filed, both of which were dismissed, and her intent to elevate the dismissal to this Court for resolution. The first, filed before the RTC, Branch 54, Manila, was dismissed on July 23, 2008 because the "court declined to exercise the power to declare rights as prayed for in the petition, as any decision that may be rendered will be inutile and will not generally terminate the uncertainty or controversy." The second, filed with the RTC, Branch 17, Manila, was dismissed for being an inappropriate remedy after the dismissal ordered by the RTC, Branch 54, Manila, on December 4, 2008. Under these circumstances, we see nothing to deter us from ruling on Atty. Buffe's actions, as no actual court case other than the present administrative case, is now actually pending on the issue she raised. On the contrary, we see from Atty. Buffe's recourse to this Court and the filing of the two declaratory petitions the intent to shop for a favorable answer to her query. We shall duly consider this circumstance in our action on the case.

A last matter to consider before we proceed to the merits of Atty. Buffe's actions relates to possible objections on procedural due process grounds, as we have not made any formal directive to Atty. Buffe to explain why she should not be penalized for her appearance before Branch 81 soon after her resignation from that Branch. The essence of due process is the grant of the opportunity to be heard; what it abhors is the lack of the opportunity to be heard. The records of this case show that Atty. Buffe has been amply heard with respect to her actions. She was notified, and she even

responded to our November 11, 2008 directive for the Executive Judge of the RTC of Romblon to report on Atty. Buffe's appearances before Branch 81; she expressly manifested that these appearances were part of the Branch records. Her legal positions on these appearances have also been expressed before this Court; *first*, in her original letter-query, and *subsequently*, in her Manifestation. Thus, no due process consideration needs to deter us from considering the legal consequences of her appearances in her previous Branch within a year from her resignation.⁹⁵

Ambulance Chasing

Ambulance chasing is the solicitation of almost any kind of business by an attorney, personally or through an agent, in order to gain employment.⁹⁶

Ambulance chasing, or the solicitation of almost any kind of business by an attorney, personally or through an agent, in order to gain employment, is proscribed.⁹⁷

The prohibition against ambulance chasing is laid out in Rule 1.03 and Rule 2.03 of the Code of Professional Responsibility. Hence, lawyers are prohibited from soliciting cases for the purpose of gain, either personally or through paid agents or brokers. Such actuation constitutes malpractice, a ground for disbarment. This rule proscribes "ambulance chasing" (the solicitation

⁹⁵Query of Atty. Karen M. Silverio-Buffe, Former Clerk Of Court – Branch 81, Romblon, Romblon – On the Prohibition from Engaging in the Private Practice of Law, A.M. No. 08-6-352-RTC, August 19, 2009

⁹⁶*Palencia v. Atty. Linsangan*, A.C. No. 10557, July 10, 2018

⁹⁷*Zamora v. Atty. Gallanosa*, AC. No. 10738, Sept 14, 2020

of almost any kind of legal business by an attorney, personally or through an agent in order to gain employment) as a measure to protect the community from barratry and champerty.⁹⁸

Barratry

Barratry is the offense of frequently exciting and stirring up quarrels and suits, either at law or otherwise.⁹⁹

An attorney who is overly officious in instigating or encouraging prosecution of groundless litigation might be guilty of common barratry under a particular statute.¹⁰⁰

Common barratry consisting of frequently stirring up suits and quarrels between individuals was a crime at the common law, and one of the penalties for this offense when committed by an attorney was disbarment. Statutes intended to reach the same evil have been provided in a number of jurisdictions usually at the instance of the bar itself, and have been upheld as constitutional. The reason behind statutes of this type is not difficult to discover. The law is a profession and not a business. The lawyer may not seek or obtain employment by himself or through others for to do so would be unprofessional.¹⁰¹

⁹⁸*Linsangan v. Atty. Tolentino*, A.C. No. 6672, September 4, 2009

⁹⁹Black's Law Dictionary, 6th Edition, 1991, p. 150

¹⁰⁰<https://legal-dictionary.thefreedictionary.com/barratry/March192023>

¹⁰¹*In Re: Luis B. Tagorda*, March 23, 1929

Barratry is a Crime Involving Moral Turpitude

Notably, jurisprudence has categorized the following acts as crimes involving moral turpitude: abduction with consent, bigamy, concubinage, smuggling, rape, attempted bribery, profiteering, robbery, murder, estafa, theft, illicit sexual relations with a fellow worker, violation of Batas Pambansa Blg. 22, intriguing against honor, violation of the Anti-Fencing Law, violation of the Dangerous Drugs Act, perjury, forgery, direct bribery, frustrated homicide, adultery, arson, evasion of income tax, barratry, blackmail, bribery, duelling, embezzlement, extortion, forgery, libel, making fraudulent proof of loss on insurance contract, mutilation of public records, fabrication of evidence, offenses against pension laws, perjury, seduction under the promise of marriage, estafa, falsification of public document, and estafa thru falsification of public document.¹⁰²

Lawyers Must Discourage Litigation

In the layperson's thinking, lawyers must be aggressive and must constantly file suits. That is why if a child is fond of arguing with parents and siblings, the family would normally think that the child will be a lawyer someday. However, if we are to scrutinize the wordings of the lawyer's oath and the Code of Professional Responsibility, one would realize that the contrary is true.

¹⁰²*Office of the Court Administrator v. Judge Ruiz, A.M. No. RTJ-13-2361 [Formerly OCA IPI No. 13-4144-RTJ], February 02, 2016*

In the wordings of President Abraham Lincoln, "Discourage litigation. Persuade your neighbors to compromise whenever you can. Point out to them how the nominal winner is often a real loser – in fees, expenses, and waste of time. As a peacemaker the lawyer has a superior opportunity of being a good man. There will still be business enough. Never stir up litigation. A worse man can scarcely be found than one who does this. Who can be more nearly a fiend than he who habitually overhauls the register of deeds in search of defects in titles, whereon to stir up strife, and put money in his pocket? A moral tone ought to be infused into the profession which should drive such men out of it."¹⁰³

On the other hand, the Philippine Supreme Court said that "It is well to stress that lawyers owe fidelity to the cause of their clients and are expected to serve the latter with competence and diligence. Consequently, lawyers are entitled to employ every honorable means to defend the cause of their clients and secure what is due them. However, professional rules set limits on a lawyer's zeal and hedge it with necessary restrictions and qualifications. In this regard, Canon 1 of the CPR provides that lawyers "shall uphold the Constitution, obey the laws of the land and promote respect for law and of legal processes." In furtherance thereto, Rule 1.04 of the CPR mandates lawyers to "encourage their clients to avoid, end, or settle a controversy if it will admit of a fair settlement."¹⁰⁴

¹⁰³<http://www.abrahamlincolnonline.org/lincoln/speeches/lawlect.htm/>
March 192023

¹⁰⁴*Sevilla v. Atty. Millo*, A.C. No. 10697, March 25, 2019

Furthermore, under Rule 1.04, it is mandated that lawyers "shall encourage their clients to avoid, end or settle a controversy if it will admit of a fair settlement." While a lawyer has the solemn duty to defend his client's rights and is expected to display the utmost zeal in defense of a client's cause, the conduct must never be at the expense of truth.¹⁰⁵

A counsel's assertiveness in espousing with candour and honesty his client's cause must be encouraged and is to be commended; what we do not and cannot countenance is a lawyer's insistence despite the patent futility of his client's position, as in the case at bar.

It is the duty of a counsel to advise his client, ordinarily a layman to the intricacies and vagaries of the law, on the merit or lack of merit of his case. If he finds that his client's cause is defenseless, then it is his bounden duty to advise the latter to acquiesce and submit, rather than traverse the incontrovertible. A lawyer must resist the whims and caprices of his client, and temper his clients propensity to litigate. A lawyer's oath to uphold the cause of justice is superior to his duty to his client; its primacy is indisputable.¹⁰⁶

¹⁰⁵*Flores v. Atty. Chua, Adm. Case No. 4500, April 30, 1999*

¹⁰⁶*Castañeda v. Ago, G. R. No. L-28546, July 30, 1975*